

SEPARATION OF STAFF MEMBERS

The Superintendent or designee may generally approve employees' requests to resign from their employment with Loudoun County Public Schools (LCPS). Any separation request must be made through the Human Resources Management System (HRMS) online portal, currently Oracle. The procedure for processing and addressing separation requests vary for licensed and non-licensed employees.

A. Non-Licensed Employees.

1. All non-licensed employees must submit their intent to separate from employment through the HRMS online portal at least two (2) weeks prior to their intended date of separation. The notification should state the reason(s) for separation, the effective date of separation, and the individual's forwarding mailing and email addresses (if available). The notice requirement may be waived by the appropriate human resources supervisor, in consultation with the employee's supervisor, in cases of extenuating circumstances and/or good cause.

2. Within two (2) business days of submitting their separation request, a non-licensed employee may withdraw that request to separate. Such withdrawal requests should be in writing to the Superintendent or designee.

B. Licensed Employees.

1. A licensed employee must submit their separation request through the HRMS online portal at least two (2) weeks prior to their intended date of separation – on or before June 15 of the school year prior to the school year in which the separation takes effect. The notification should state the reason(s) for separation, the effective date of separation, and the individual's forwarding mailing and email addresses (if available). The notice requirement may be waived by the appropriate human resources supervisor, in consultation with the employee's supervisor, in cases of extenuating circumstances and/or good cause.

2. A licensed employee who submits a request to resign with fewer than two (2) weeks' notice, during the term of their current contract, or after June 15 of the school year, must submit a written explanation of the reason(s) for their resignation through the HRMS online portal. Failure to do so without good cause will be considered a breach of contract and may be subject to consequences for untimely resignation, as set forth in section C below.

3. Within one (1) week of submitting their resignation request, a licensed employee may withdraw that request to resign. Such withdrawal requests should be in writing to the Superintendent or designee. Upon the expiration of the one (1) week period, the Superintendent shall notify the School Board of the decision to accept or

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reject the licensed employee's resignation request. Within two (2) weeks of such notification, the School Board may reverse the Superintendent's decision.

4. In the event that the School Board or Superintendent declines to grant an employee's resignation request on the grounds of insufficient or unjustifiable cause, and the licensed employee breaches their contract, in accordance with [Va. Code § 22.1-304\(C\)](#), disciplinary action, which may include written reprimand, suspension, or revocation of the employee's license, may be taken, pursuant to regulations prescribed by the Board of Education.

5. Licensed employees who have contracted with LCPS for an upcoming school year, and who may be seeking employment with other school divisions after June 15 are reminded that their LCPS contract is firm and binding. Licensed employees may seek employment and file applications for the subsequent school year with other school divisions. Consequently, an employee should not accept a contract with another school division until and unless a written release from LCPS has been secured. The Superintendent may decline a licensed employee's request for such a release for good cause.

C. Untimely Resignation Notifications. Employees who do not give at least two (2) weeks' notice, and licensed employees that resign after June 15 or breach their contract during the school year, may be subject to any of the following:

1. The employee may not be eligible for reemployment with LCPS.
2. In response to reference requests, LCPS may advise that the employee resigned their position.
3. LCPS may take appropriate disciplinary action by dismissing the employee due to breach of contract. In the event the School Board or Superintendent declines to grant a request to resign, and the licensed employee fails to honor their contractual obligations, LCPS may file a petition for suspension or revocation of the employee's license with the Virginia Department of Education.

Adopted: 04/23/2024

Legal Refs.: Va. Code [§ 22.1-304](#)

Cross Ref: Policy [7318](#), Separation of Staff Members; Policy [7301](#), Licensed Staff